

# **Workplace Hazardous Materials Information System (WHMIS)**

## **WHMIS: Introduction**

**Is your organization required to comply with regulations on hazardous products? For companies to avoid breaking the law and keep the safety of their workers a priority, they are required to follow the best safe work practices. Let's get into the regulations and what employers are expected to do under the Workplace Hazardous Materials Information System, or WHMIS.**

**In Canada, legislation on hazardous products can be found on multiple levels—federal, provincial, and territorial. The law requires suppliers of hazardous products intended for use, handling, or storage in a workplace to classify those products and provide health and safety information about them to their customers.**

**The purpose of the provincial and territorial WHMIS legislation is to require employers to obtain health and safety information about hazardous products from their suppliers, and to use that information when training their workers. WHMIS also protects confidential business information.**

**Let's go over what the federal WHMIS legislation requires. It's administered by Health Canada and includes these obligations:**

**First is the Hazardous Products Act, or HPA. This law requires suppliers who sell or import hazardous products intended for use, handling, or storage in a workplace in Canada to provide labels and safety data sheets, or SDSs, to the purchasers of those products. Labels and SDSs must be updated on an ongoing basis, as new information about a product becomes available. That said, there is no longer a requirement to update it every three years.**

**An important part of compliance also includes the Hazardous Products Regulations, or HPR. These regulations involve hazard classes and categories, such as flammable liquids, skin irritants, and so on. There are certain things a label needs to include depending on what class and category a substance falls under.**

Next, the Hazardous Materials Information Review Act, or HMIRA, provides for the protection of confidential business information. This Act defines the type of information that a supplier or employer may claim an exemption from disclosing on a label or safety data sheet. It assigns Health Canada with the responsibility of determining if a claim for exemption from disclosing confidential business information is valid.

Finally, the last piece of federal legislation we'll mention are the Hazardous Materials Information Review Regulations, or HMIRR. These regulations address exemption claims, including exemptions for disclosing confidential business information. Health Canada is required to assess all claims under the same criteria, and claims must include certain information in order to help them to do that.

Now, Ontario has additional laws involving more requirements under WHMIS. Some of the laws that may be incorporated include:

The Occupational Health and Safety Act, or OHSA. This requires employers to identify hazardous products, to obtain safety data sheets, to make them available in the workplace, and to provide instruction and training to workers. OHSA also protects confidential business information according to procedures set forth in the federal HMIRA.

Next, Ontario has the Workplace Hazardous Materials Information System Regulation. This sets out in detail the employer's duties when it comes to respecting labels and safety data sheets for hazardous products and prescribes the content and delivery of worker education programs. This regulation also addresses the types of confidential business information which the employer may omit from a label or safety data sheet.

Ontario's WHMIS legislation applies to all workplaces covered by OHSA, with the exception of farms.

Now, how is this legislation enforced?

**In Ontario, the Ministry of Labour, Training and Skills Development is responsible for enforcing both the federal and provincial WHMIS laws. Things are set up this way to avoid cases where employers and suppliers would be subject to inspections by both federal and provincial inspectors. Basically, the inspectors of the Ministry of Labour, Training and Skills Development monitor compliance with the HPA, HPR, OHSA, and the WHMIS Regulation.**

**The OHSA and WHMIS Regulation do not apply to federally regulated workplaces such as banks, post offices, and airports in Ontario. Instead, certain sections of the Canada Labour Code and the Canada Occupational Health and Safety Regulations take care of implementing WHMIS in federal workplaces and enforcing the law using inspectors employed by the federal government's labour program.**

**It's important to note that..., WHMIS requirements run adjacent to another law on hazardous substances—and that's the transportation of dangerous goods, or TDG legislation. These laws apply to products being shipped to and from workplaces. As a general rule, WHMIS applies to hazardous products INSIDE a workplace. No overlap is intended, so the regulations specifically do not apply when a product is being transported.**

**When a hazardous product is in a warehouse, it can be difficult to determine which requirements apply — WHMIS or TDG. Here are a couple tips: It falls under TDG requirements if the goods are being temporarily stored for transport and are not handled except to be loaded onto a vehicle for removal from the warehouse. On the other hand, WHMIS will apply if a hazardous product in a warehouse is repackaged, assembled, labelled or relabeled, processed, or used.**

**So, now that you have an overview of the regulations that organizations need to comply with when they're involved in the production, use, handling, or storage of hazardous materials, how can you apply this knowledge to your job? Are you following best practices to keep yourself safe? Keep these laws in mind so you can keep yourself protected.**